

24STLC07982 24STLC07982

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC07982 Hearing Date: August 6, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Andres Cano Sanchez's Motion Regarding Meet and Confer is denied.

Analysis:

On November 4, 2024, Plaintiff

Andres Cano Sanchez ("Plaintiff") filed the instant action for breach of contract and common counts against Defendant Sandra P. Lemus (erroneously sued as Sandra P. Lemus Abrego De De La Rosa) ("Defendant"). Defendant filed an Answer, in propria persona, on December 9, 2024. The action came for trial on May 4, 2026, at which time the Court found that no trial documents had been filed and that the parties had not complied with the Third Amended Standing Order. (Minute Order, 05/04/26.) Pursuant to oral stipulation, the Court continued the trial date to June 2, 2026 and ordered the parties' compliance with the Third Amended Standing Order, including a meet and confer at least 20 days before trial, and filing of a joint witness list at least five days before trial. (Ibid.)

On June 2, 2026, the Court found

that, again, the parties had not complied with Third Amended Standing Order, nor filed trial documents. (Minute Order, 06/02/26.) The trial date was continued to August 3, 2026, the parties were again ordered to comply with the Standing Order (now the Fourth Standing Order.) On July 14, 2026, Plaintiff filed the instant Motion Regarding Meet and Confer.

On August 3, 2026, the parties

appeared for trial without having met and conferred, filed joint witness lists or exhibits lists, and without hard copy binders containing both parties' exhibits. The Court conferred with the parties regarding trial preparation and ordered the parties to return for trial on August 6, 2026.

Discussion

The instant motion is denied as moot based on the Court's discussion with the parties on August 3, 2026. The Motion is also denied for procedural reasons.

First, Plaintiff filed a proof of service with respect to the instant Motion attesting that it was mailed to Defendant on July 23, 2026. (Proof of Service, file 07/30/26, ¶¶4-6.) This was only ten court days prior to the hearing date, in violation of the statutory notice requirements. A motion and notice of hearing date must be served at least 16 court days prior to the hearing; if served by mail the time increases by five days. (Code Civ. Proc., § 1005.) Plaintiff's failure to serve Defendant with the Motion and notice of hearing by July 10, 2026 is a violation of due process and of the statutory notice requirements. (Code Civ. Proc., § 1005; *Jones v. Otero* (1984) 156 Cal.App.3d 754, 757.)

The Court cannot grant a motion if the opposing party is not served with sufficient time to respond.

Additionally, the Motion is not accompanied by a memorandum of points and authorities showing any legal basis for the relief sought. A memorandum of points and authorities is required to accompany a motion under Cal. Rules of Court, rule 3.1113. "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, Rule 3.1113(b).) Indeed, Plaintiff's failure to provide a memorandum as required by the Rule may be considered an "admission that the [request] is without merit and cause for its denial." (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.) The Motion advises the Court that the parties have been unable to meet and confer, as ordered, but does not otherwise identify any evidence or arguments or legal basis for the Court to act.

Therefore, Plaintiff Andres Cano Sanchez's Motion Regarding

Meet and Confer is denied. As indicated, the Court conferred with the parties at the August 3, 2026 trial date. The Court believes that conference addressed the relevant topics as which the parties were to meet-and-confer, making this Motion moot, in any event.

Moving
party to give notice.